

STATE OF NEW YORK

3838--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. JONES -- read once and referred to the Committee on Governmental Employees -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to procedures and other matters related to the receipt or discontinuation of certain benefits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 207-c of the general municipal law is amended by
2 adding a new subdivision 7 to read as follows:

3 7. Any determination by a municipality regarding an employee's initial
4 eligibility for, or discontinuance of, benefits under this section shall
5 be subject, upon request of the affected employee, to a de novo eviden-
6 tiary hearing. Such hearing shall afford all parties the opportunity to
7 present testimonial, documentary, and other evidence that is material
8 and relevant to the determination. The hearing officer or arbitrator
9 shall make an independent determination based on the evidence presented,
10 and shall not be limited to reviewing the municipality's determination
11 under an arbitrary and capricious standard. Under no circumstances shall
12 a proceeding pursuant to article seventy-eight of the civil practice law
13 and rules be considered a reasonable substitute for the evidentiary
14 hearing required by this subdivision. Nothing in this subdivision shall
15 preclude the parties from negotiating additional or alternative proce-
16 dures through collective bargaining, provided such procedures afford the
17 affected employee a full and fair opportunity to be heard. This eviden-
18 tiary hearing process provided for by this subdivision shall be deemed a
19 mandatorily negotiable term and condition of employment under article
20 fourteen of the civil service law.

21 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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